Changes to Legislation: as of 17 September 2026, this Act is up to date with all changes known to be in force.

Number 11 *of* 2017

CRIMINAL JUSTICE (OFFENCES RELATING TO INFORMATION SYSTEMS) ACT 2017

REVISED

Updated to 2 April 2025

This Revised Act is an administrative consolidation of the *Criminal Justice (Offences Relating to Information Systems) Act 2017*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Merchant Shipping (Investigation of Marine Accidents) Act 2025* (2/2025), enacted 14 April 2025, and all statutory instruments up to and including the *Policing, Security and Community Safety Act 2024 (Commencement) Order 2025* (S.I. No. 107 of 2025), made 2 April 2025, were considered in the preparation of this Revised Act.

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Number 11 *of* 2017

CRIMINAL JUSTICE (OFFENCES RELATING TO INFORMATION SYSTEMS) ACT 2017

REVISED

Updated to 2 April 2025

An Act to give effect to certain provisions of Directive 2013/40/EU of the European Parliament and of the Council of 12 August 2013[1] on attacks against information systems and replacing Council Framework Decision 2005/222/JHA; for those and other purposes to amend the Criminal Damage Act 1991, the Bail Act 1997 and the Criminal Justice Act 2011; and to provide for related matters.

[24*th May*, 2017]

Be it enacted by the Oireachtas as follows:

Interpretation

1.(1) In this Act—

"act" includes an omission;

"data" means any representation of facts, information or concepts in a form capable of being processed in an information system, and includes a programme capable of causing an information system to perform a function;

"information system" means—

(a) a device or group of interconnected or related devices, one or more than one of which performs automatic processing of data pursuant to a programme, and

(b) data stored, processed, retrieved or transmitted by such a device or group of devices for the purposes of the operation, use, protection or maintenance of the device or group of devices, as the case may be;

"lawful authority", in relation to an information system, means—

(a) with the authority of the owner of the system,

(b) with the authority of a right holder of the system, or

(c) as permitted by law;

"Minister" means the Minister for Justice and Equality;

"relevant offence" means an offence under *section 2*, *3*, *4*, *5*, *6* or *9(1)*;

[1] OJ No. L218, 14.8.2013, p. 8

Search warrant

7. (1) If a judge of the District Court is satisfied by information on oath of a member that there are reasonable grounds for suspecting that evidence of, or relating to, the commission of a relevant offence is to be found in any place, the judge may issue a warrant for the search of that place and any persons found at that place.

(2) A search warrant under this section shall be expressed, and shall operate, to authorise a named member, accompanied by such other members or persons or both as the member thinks necessary—

(a) to enter, at any time within one week of the date of issue of the warrant, on production if so requested of the warrant, and if necessary by the use of reasonable force, the place named in the warrant,

(b) to search it and any persons found at that place, and

(c) to examine, seize and retain anything found at that place, or anything found in possession of a person present at that place at the time of the search, that that member reasonably believes to be evidence of, or relating to, the commission of a relevant offence.

(3) The authority conferred by *subsection (2)(c)* to seize and retain anything includes, in the case of a document or record, authority—

(a) to make and retain a copy of the document or record, and

(b) where necessary, to seize and, for long as is necessary, retain any computer in which any record is kept.

(4) A member acting under the authority of a search warrant under this section may—

(a) operate any computer at the place that is being searched or cause any such computer to be operated by a person accompanying the member for that purpose, and

(b) require any person at that place who appears to the member to have lawful access to the information in any such computer—

(i) to give to the member any password necessary to operate it and any encryption key or code necessary to unencrypt the information accessible by the computer,

(ii) otherwise to enable the member to examine the information accessible by the computer in a form in which the information is visible and legible, or

(iii) to produce the information in a form in which it can be removed and in which it is, or can be made, visible and legible.

(5) A member acting under the authority of a search warrant under this section may, for the purpose of investigating the commission of a relevant offence,require any person at the place to which the search warrant relates to—

(a) give to the member his or her name and address, and

(b) provide such information to the member as he or she may reasonably require.

(6) The Police (Property) Act 1897 or, where appropriate, section 25 of the Criminal Justice Act 1951 shall apply to property which has come into the possession of the Garda Síochána under this section as that Act or such

section 25, as the case may be, applies to property which has come into the possession of the Garda Síochána in the circumstances mentioned in that Act concerned.

(7) A person who—

(a) obstructs or attempts to obstruct a member acting under the authority of a search warrant under this section,

(b) fails to comply with a requirement under *subsection (4)(b)* or *(5)*, or

(c) in relation to a requirement under *subsection (5)*, gives a name and address or provides information which the member has reasonable cause for believing is false or misleading in a material respect,

shall be guilty of an offence.

(8) The power to issue a warrant under this section is without prejudice to any other power conferred by statute to issue a warrant for the search of any place or person.

(9) In this section—

"computer" includes a personal organiser or any other electronic means of information storage and retrieval;

"computer at the place that is being searched" includes any other computer, whether at the place being searched or at any other place, which is lawfully accessible by means of that computer;

F1**[**"member" means a member of An Garda Síochána within the meaning of the Policing, Security and Community Safety Act 2024 other than a member who holds the rank of reserve garda.**]**.

Penalties

8. (1) A person who commits an offence under *section 2*, *4*, *5*, *6* or *9(1)* shall be liable—

(a) on summary conviction, to a class A fine or imprisonment for a term not exceeding 12 months or both, or

(b) on conviction on indictment, to a fine or imprisonment for a term not exceeding 5 years or both.

(2) A person who commits an offence under *section 3* shall be liable—

(a) on summary conviction, to a class A fine or imprisonment for a term not exceeding 12 months or both, or

(b) on conviction on indictment, to a fine or imprisonment for a term not exceeding 10 years or both.

(3) A person who commits an offence under *section 7(7)* shall be liable on summary conviction, to a class A fine or imprisonment for a term not exceeding 12 months or both.

(4) (a) Where a court is determining the sentence to be imposed on a person for an offence under *section 3* or *4*, the fact that the commission of the offence involved misusing the personal data of another person ("rightful identity owner") with the aim of gaining the trust of a third party, thereby causing prejudice to the rightful identity owner, shall be treated as an aggravating factor for the purpose of determining the sentence.

(b) Accordingly, the court shall (except when the court considers that there are exceptional circumstances justifying it not doing so) impose a sentence that is greater than that which would have been imposed in the absence of such a factor.

(c) The sentence imposed shall not be greater than the maximum sentence permissible under this section for the offence concerned under *section 3* or *4*.

Liability for offences by body corporate, etc.

9. (1) Where a relevant offence (other than an offence under this subsection) is committed for the benefit of a body corporate by a relevant person and the commission of the relevant offence is attributable to the failure, by a director, manager, secretary or other officer of the body corporate, or a person purporting to act in that capacity, to exercise, at the time of the commission of the relevant offence and in all the circumstances of the case, the requisite degree of supervision or control of the relevant person, the body corporate shall be guilty of an offence.

(2) In proceedings for an offence under *subsection (1)*, it shall be a defence for a body corporate against which such proceedings are brought to prove that it took all reasonable steps and exercised all due diligence to avoid the commission of the offence.

(3) Where an offence under this Act is committed by a body corporate and it is proved that the offence was committed with the consent or connivance, or was attributable to any wilful neglect, of a person who was a director, manager, secretary or other officer of the body corporate, or a person purporting to act in that capacity, that person shall, as well as the body corporate, be guilty of an offence and shall be liable to be proceeded against and punished as if he or she were guilty of the first-mentioned offence.

(4) *Subsection (1)*—

(a) is without prejudice to the other circumstances, under the general law, whereby acts of a natural person are attributed to a body corporate resulting in criminal liability of that body corporate for those acts, and

(b) does not exclude criminal proceedings against natural persons who are involved as perpetrators, inciters or accessories in an offence under this Act.

(5) In this section—

"relevant person", in relation to a body corporate, means—

(a) a director, manager, secretary or other officer of the body corporate, or a person purporting to act in that capacity, or

(b) an employee, subsidiary or agent of the body corporate;

"subsidiary", in relation to a body corporate, has the meaning it has in the Companies Act 2014.

Jurisdiction

10 (1) A person may be tried in the State for a relevant offence in relation to an act, to which this subsection applies by virtue of *subsection (2)*, committed, whether in whole or in part—